I. PROLOGUE TO THE PREFACE:

(MAY 21, 2025 ; 12:30-1:00 PM)

It was a lovingly constructed lawsuit, hand-sewn and crafted with care, printed on 60 lb. paper (whatever that ambiguous, non-metric-system unit was supposed to mean), sewn up with a fine bookbinding thread, as per those same instructions, both specific and oddly vague (like "Titorelli's Revenge" [1] [2] [3] or the "Parable of the Doorkeeper, or, “Before the Law”, as it is often called), and, at long last, some 17 copies were completed and carried off by those whose infamous motto, "... neither snow nor rain nor heat nor gloom of night..." in fact, had a loophole clause--by omission--for raining ash, Pele's Hair, vog, pyroclastic bombs, and other volcanic debris (there are some roads that even the government won't go down). Its arguments were sinuous, and seamless, and strung along, meandering, through an unbroken line of logic and experience [4] [5], stretching back 200, or, perhaps, 2000 years, weaving back through the personal, the national, and through international [6] histories.

The traitors [7] [8] knew nothing of logic, nor did they care much for vocabulary, the English language, or empirical or epistemological concerns [9] . Metaphysics [10], like justice,

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[1] Franz Kafka, The Trial, 1-304 (Breon Mitchell trans., Schocken Books 1999) [hereinafter Trial].
[2] Franz Kafka, The Castle, 1-338 (Muir trans., Schocken Books/Knopf 1954) [hereinafter Castle].
[3] Franz Kafka, Amerika. 1-336 (Muir trans., Schocken Books/Knopf 1996) [hereinafter Amerika].
[4] David Bogen, The Free Speech Metamorphosis of Mr. Justice Holmes, 11 Hofstra L. Rev. 97, 118-122 (1982).
[5] Robert George, Holmes on Natural Law, 48 Villanova L. Rev. 1, 7-10 (2003).
[6] Jaroslav Hasek, The Good Soldier Svejk, 1-752 (Cecil Parrott trans., Heinemann 1973-1974)
[7] Complaint at 29–31, Nebraska v. Biden, No. 4:22-cv-01040 (E.D. Mo. Sept. 29, 2022).
[8] Biden v. Nebraska, 600 U.S. 477 (2023).
[9] Friedrich Nietzsche, On the Use and Abuse of History for Life, 1-68 (Ian Johnston trans., Richer 2010).
[10] Louis Menand, The Metaphysical Club, 1-384 (Farrar, Strauss, and Giroux 2001).

was a foreign word to them; it was, to their ears, only the cry of the vanquished and defeated, and of the pathetic "Beta Cucks", as it is commonly expressed in the modern "Know-Nothing" parlance. Their *stare decisis* was a ruse, an ancient game [11] [12] [13] by which wolves, circled and corralled, all the while counting heads of sheep to feed to their ravenous pups. Their true understanding, was little more than a thousand- year-old behavioral suite, easily dating back to 1215 CE, or even 1066 CE, or earlier, and required of them only the understanding of two simplistic social tools: Money and Power. Luckily, for them—or luck, so they thought—their vocation, had featured both of these tools, in abundance.

Hark! They cry out, from the rooftops, from the bus stops, from the streets and the boardrooms, and the courtrooms, and they all cry out in an identical pulse; a rhythmic, maniacal, undulating ululation, densely replete with the dullest of syllabary shards; a meaningless, soporific, obfuscatively verbose drivel! It is the Shriek of the Religious Zealot, of the Diviners, of the weak and the dull and the converted; and of the Banshee and the Legalese Leger-Demons; the Semantic-Pedantic Jurisprudes! [14] [15] [16] [17] [18] [19] [20] [21] [22] [23] Their

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[11] U.S. Const. art. I, § 10, cl. 1.
[12] Tom W. Campbell, Two Fighters and Two Fines: Sketches of the Lives of Matthew Lyon and Andrew Jackson. Little Rock, 37-140 (Pioneer Publishing Co. 1941).
[13] E. Sandoz, The Roots of Liberty: Magna Carta, ancient constitution, and the Anglo-American tradition of rule of law, 22-25, 260-266 (University of Missouri Press 1993).
[14] Kafka, Trial, supra note 1; Kafka, Castle, supra note 2; Kafka, Amerika, supra note 3.
[15] George Orwell, Politics and the English Language, 1-32 (Penguin Modern Classics 2013).
[16] Raymond Bradbury, Fahrenheit 451, 1-156 (Ballantine Books 1953).
[17] Aldous Huxley, Brave New World, 1-288 (Vintage 2004).
[18] Kurt Vonnegut, Tomorrow and Tomorrow and Tomorrow, 884-894 (Galaxy Science Fiction Jan. 1954).
[19] The Prisoner, (ITC Entertainment 1967-1968).
[20] Yevgeny Zamyatin, We, 1-204 (Gregory Zilboorg trans., Easton Press 1993).
[21] (See also, all other dystp. fiction, Heller, 1961; Butler, 1872; Orwell, 1949; Bentham, 1995; Milton, 1995)
[22] Randall Meyer, Supplemental Materials (musical CD and lyrics sheet). [hereinafter CD]
[23] Randall Meyer, Big Yellow Notebook : Optical and Electrical Engineering, 2006-2022, https://ladnarofladner.github.io/index.html, Retrieved 03/28/2026. [hereinafter Notebook]

tedious, incessant, yet toothless call? "So Sue Me", is their preferred text and screed, their unceasing rant, followed by, “I’ll see you in court", and--to persons whose acquaintance and favor they might value, now, or in the future--"My uncle knows a guy who can help ..." [24] [25] . If they have picked a fight which they shouldn't have picked, the refrain becomes, "Hey? Let's not make a Federal Case out of this.", to which any reasonable child, grandchild or great-great-seven-greats-grandchild of the revolution [26] [27] (or of the founders, or framers, depending upon your own personal preferred terminology and your own view of these nearly-ancient political considerations), the responsible reply to such base, vile provocations is, "No. Let's. Let us do, exactly that. I will see you in court.". To those with less invested in this particular anthropological game, apathy and negligence abounds, so that, when legal experts tell us that we have neither natural rights [28] , nor natural civil rights [29] [30], except those which an active and engaged citizenry [31] [32] [33] has seen fit to protect and enforce, vigilantly, through the ages, the studious observer cringes when faced with this logic. Men, and women, the astute historical observer notes, are apt to endure a hardship, work around it, persevere, while they can, and so, civil rights, under this legal theory, “use it or lose it”,

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[24] Kafka, Trial, supra note 1, at 1-304.
[25] Kafka, Amerika, supra note 3, at 1-336.
[26] Jon Metz, AMREV~HESSIAN : Hessian Guide (George Henrich Rassmann), Rootsweb, https://freepages.rootsweb.com/~amrevhessians/military/a/amhessians17.htm, (Mar. 27, 2006).
[27] U.S. Patent No. 2,810,280 (issued October 22, 1957) (See Ralph Rossman, Clipping Dial for Circular Knitting Machine).
[28] George, supra note 5, at 7-10.
[29] 42 U.S.C. §§ 1983, 1985.
[30] 18 USC §§ 241-242, 245.
[31] George, supra note 5, at 7-10.
[32] Bogen,, supra note 4, at 118-122.
[33] Catherine Drinker Bowen, Miracle At Philadelphia: The Story of the Constitutional Convention, May to September, 1787, 1-346 (Little, Brown and Co. 1966-1967).

would fall into disuse, and subsequently, into non-existence, with *stare decisis* becoming, thusly, "all sword, and no shield". There must be some hard lines drawn. The recently-late American philosopher, Daniel Dennett, speaking of religion and metaphysics, but also of logic, epistemology and ontology, can be paraphrased as saying; "It is like intellectual tennis, without nets. All I am saying is, let's put up some nets."

Representative Peter Welch (now, Senator) understood, for a brief moment, in October of 2014 [34] [35] . One does not debate a candidate on public television, and hear him quote Walt Whitman [36], and forget it easily; no matter how "third-party", and thus effectively-irrelevant, that candidate might be. Nor is a person who is sued with the words of Whitman--and perhaps of Charles Sanders Peirce, the only founder [37] [38] of a school fo philosophy native to the Western Hemipshere in all of modern history--forget it easily. It is a thing to be remarked upon, the basing of a political, financial, and world order on empiricism and justice [39], and, quite crucially, the plain meaning of plain words [40] [41], amongst honest men and women, and this vehicle of justice, and law and order, is most emphatically not a toy to be played with. There are no modern witch-hunts, and no neo-crusades. To speak of such, or

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[34] Vermont PBS, 2014 U.S. House of Representatives Debate (VT), YouTube (Oct. 23, 2014), https://www.youtube.com/watch?v=wQTLoaJMH2k (and associated videos, from same). [hereinafter VPT].
[35] CCTV Debate (Local 17 ; CH-17.tv), 2014 U.S. House of Representatives Debate (VT), YouTube (Oct. 10, 2014), https://www.youtube.com/watch?v=PC6ccHcLpYA (and associated videos, from same). [hereinafter CCTV].
[36] Walt Whitman, Leaves of Grass, 1-562 (Mckay 1888; 1920).
[37] Menand, supra note 10, at 1-384.
[38] Darnell Rucker, The Chicago Pragmatists. (University of Minnesota Press 1969).
[39] Bowen, supra note 33, at 1-346.
[40] James Murray, William Minor, and Smith. A New English Dictionary on Historical Principles; Founded Mainly on the Materials Collected by The Philological Society, (Clarendon Press 1884-1928).
[41] Simon Winchester, The Professor and the Madman : a Tale of Murder, Insanity, and the Making of the Oxford English Dictionary, 1-272 (Harper Perennial 1999).

to speak of a "post-literate" society, is to already admit defeat. It is a submission to nihilism [shades of Camus [42], perhaps?] and anarchy of the worst kind (the violent kind, not the peaceful "live and let live" of, say, the Amish, or like that of many groups of American pacifistic "hippy" anarchists). As Churchill (or Macmillan) put it in so famous a quote it is almost a waste of words to write it here: "It is better to jaw jaw, than to wah wah [war war]".

I am not asking you to uphold the meaning of English words. I am telling you that this is your only choice, lest you stoop, collectively, into apish games of chimpanzee grimaces and poop-throwing (bringing the rest of us, your society, along with you!). I will not smile, unless it is the genuine kind (like Kafka, on the beach in Denmark, in 1914) and I must confess to smiling now, as I throw this excrement of a lawsuit at my apish, functionally-illiterate foes. It is no libel or slander, if I speak the truth, and, I'll have you note, I am the one who is willing and ready to appear in court to defend my words, and my reputation. It is these "worthless scoundrel[s], poltroon[s], and coward[s]" [43] [44], throughout the ages, who have added merely colorful footnotes to American history, but who ultimately, are quite forgotten, for even when the "hero" of a story dies, or is robbed or cheated, the story remains properly written, and properly remembered. It is "Titorelli's Revenge" [45] to vanquish the illiterate, and to paint them, not as Lady Justice, complete with a Balance Scale, and with the Wings of Victory, but instead, as the scoundrels and poltroons they truly are. Such

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[42] Albert Camus, The Myth of Sisyphus, 1-192 (Justin O'Brien, trans., Penguin Classics 2000).
[43] Andrew Jackson, Letter May 23, 1806, Andrew Jackson Coll., 1788-1942. (Tennessee Virtual Archive (TeVA) 2023).
[44] Andrew Jackson, Letter from Andrew Jackson to John Sevier, Oct. 3, 1803, (Tennessee Virtual Archive (TeVA) 2023).
[45] Kafka, Trial, supra note 1, at 116.

characters are almost always forgotten, or, better yet, remembered only, properly, for their villainy and duplicitous natures.

When King George the III had audience with the son of John Harrison, the inventor of the marine chronometer, about the subject of that famous unremunerated work of inestimable value, it is said that he remarked "By God Harrison, I will see you righted.". My name is Randall Meyer [46] [47] [48] [49], and I am the son of Regan Meyer, a real veteran of the Vietnam conflict (not like "Corporal Bonespurs" or "Captain Statesider, Jet-Jockey, Fly-Boy"), and great grandson of Ralph K. Rossman [50], and great-great-great-seven-greats grandson of Heinreich Raussman (a Hessian soldier, mercenary, AKA "slave"[51]; but no relation to Kafka's K. Rossman, from "Amerika" fame [52].). As Whitman might put it, "born here of parents, born of parents the same ..." [53], "Urge and urge and urge, Always the procreant urge of the world." and "Every atom as good belongs to you, belongs to me....". I am an American citizen, but probably not for much longer, as I plan to move abroad and make other legal arrangements, very soon. I discovered "Meyer's (Linguistic) Law", in 2003 [54], though it is not published, as I have not been allowed to go to graduate school and earn

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[46] Meyer, CD, supra note 22, at CD I tracks 1-22 and CD 2 tracks 1-24.
[47] Meyer, Notebook, supra note 23, at 105. (See, https://ladnarofladner.github.io/index.html Retrieved. 03/28/2026.)
[48] Meyer, VPT, supra note 34, at 00:00 through 82:52.
[49] Meyer, CCTV, supra note 35, at 00:00 through 94:32.
[50] Rossman, supra note 27, at 1-4.
[51] Rassmann, supra note 26, at 1. (see also, https://ladnarofladner.github.io/Rossman.html).
[52] Kafka, Amerika, supra note 3, at #.
[53] Whitman, supra note 36, at 27, 239.
[54] Meyer, Notebook, supra note 23, at 105. (and see https://ladnarofladner.github.io/MeyersLaw.html)

a Master's Degree or PhD. It is the cowardly acts of libelous scoundrels and ersatz-nobility [55] which stops me from doing my work.

I am suing for the full amount in lost wages (calculated at BLS reported median salary and/or wages for a biologist, inflation adjusted: (a) $1,280,290.00 for the time period, approx. twenty years, previous, and (b) $2,008,755.34 for the coming twenty year period, before a planned, graceful and dignified retirement, in 2045) [56], and an apology, and a reinstatement of my good reputation (or, rather, the as-yet-unproven reputation, of your average graduate student).

The rest of this conflict, is just procedural hurdles, irrelevant details, and my adversaries' self-contradictory arguments and evasions. Were I to study one area of the law, intently, it would be estoppel. I must stop their attempted evasion of the consequences of their first volleys of libel and slander by their utterance of a second round of libels and slanders, and estoppel would probably enjoin them and prevent their taking up self-contradictory, fact-contradictory positions. Out in the woods, in the jungle, the concrete jungles, in the board rooms and from the political pulpit, they are free to espouse all sorts of tautologous and non sequitur nonsense; a "Gish Gallop", as it is sometimes called. If Oliver Holmes Jr. [57] was looking, today, for experience of the kind that would guide his

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[55] U.S. Const. art. I § 10, cl.1.
[56] Randall Meyer, On-line Post of Inflation Adjusted Analysis of Biologist Wages and Salaries; Based Upon the Published BLS Statistics. See, https://ladnarofladner.github.io/SupremeCourtAndWagesBLS.html ; Retrieved 03/28/2026. [hereinafter BLS].
[57] Oliver Wendell Holmes Jr., The Common Law, 1 (Little, Brown and Co. 1881).

jurisprudence, the governing fact, today, would be the fact of the modern massive dissemination of political rhetoric, in place of sound logic and solid premises. Words mean words. There is no escaping this modern fact, even if we slap some silly label on the practice of dodging our adult and civilizational responsibilities, like "Postmodernism" or even "Post-Postmodernism", the fact remains that words and their meanings are the boundaries and boxes which outline our civilizational responsibilities, duties, and capabilities. Without them, all of this is just an apish excrement fight of meaningless syllables; monkeys at their typewriters, as the old thought experiment goes, but I do not wait for Shakespeare to fly from the typewriters of these judicial proceedings, and nor, I think, should you.

I have also, despite my poor "professional luck", invented the best of the modern Anthropomorphic Focal Surface Arrays (FSAs), both in image sensors (CCD and / or CMOS) and in Fiber Optic Image Conduits (FOICs) [58]. I utilize the geometry of the Goldberg Polyhedra. MOHELA, the states' AGs, the Presidents, and Nelnet, "Know-Nothing" about any of these things, but also, in their rough approximations of ascribing a value to me, in their "world-view", they have not stopped to ask (they wouldn't understand, anyway, as they are neither qualified nor inclined towards understanding facts or logic, but seem, instead, only bent towards the dissemination of a profusion of rhetoric, money and power. I await their reasoned, literate, intelligible response, under oath, in a court of law, if this charge seems unfounded and unfair to them and / or their persons?) And while I am owed millions

[58] Meyer, Notebook, supra note 23 .at 1-11, 64-65, and 100-104, for typical commentary. See at https:// - ladnarofladner.github.io/index.html, Retrieved 03/28/2026, and, also see, https://ladnarofladner.github.io/ - VisionResearch.html Last Updated , 04/02/2026. See, also, Hicks, U.S.P. # 3,033,071 .

for my work, they are fighting me in court (or, rather, in a remarkably cowardly fashion, ignoring me in court) over mere thousands (10 or 20k $, at last counting). Their desire for their own money and power exceeds all rationality, stomps on my civil rights, and yours, on the U.S. Constitution, and also disrespects your office and position (not to mention my father's brief, approximately six-month youthful sacrifice, and service, in the jungles of Vietnam, circa 1968). It impoverishes the nation, and, though it might be remarked that I inflate my own importance and self-worth in writing the following, I say that they impoverish history by denying my reputation and denying me opportunities to publish my unique, important, one-of-a-kind intellectual works. Rarely, if ever, in this "modern era", has such a blatant example of a "chilling effect" [59] [60] been so brazenly foisted upon the free-thinking world.

And while I sympathize with the justices and courts--and some of the lawyers, and academic professors--when I hear the cry of "be careful not to set a bad precedent!", and while I shed a minimal tear for those banks who lent a bad loan to a lazy college student with no pluck, verve, grit, or initiative, this suit, in and of itself, is proof that I am not one of those. And if you check "under the rug" of MOHELA and Nelnet, and others, I think you will find a mountain of wasted and ignored talent, denigrated and debased effort, "busy-work" and "bull-dung jobs", and where my millions were denied, many other millions were denied too. It's an ugly game, one that they play, for mere pennies and nickels (or, mor literally, mere thousands), while the real dollars, measured in millions (whether in the past,

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[59] U.S. Const. amend. I.
[60] Wieman v. Updegraff, 344 U.S. 183 (1952).

present, or future), and the societal value, are scuttled and erased, irrevocably, illegally, and quite stupidly.

I. Prefatory Comments

I am a "professor" (yet, only a Bachelor of Science degree, Marine Biology, University of Rhode Island '02) and a tough grader. I suppose, when I am granted this Writ of Certiorari, I will give us all a C+--the "gentleman's C", or "gentlelady's C"—for showing up, for having attempted the homework, and for having been prepared for useful and intelligent discourse. Handing out, *a priori*, "F's"—particularly to the Federalist Wing of the Court—would be unnecessarily provocative, for, even if Nietzsche [61] and the founding fathers (emphatically not the "framers", who were a minor subset of the larger group that we know of as the "founders" [62]) might approve, I prefer to have useful conversations, that are capable of the changing of minds, and of courses of action. In the end, I have already resolved to leave the country, again, and so, there is zero leverage this court, nation, or "economy" has over me, and I am, at last free to tell everybody how things really are. I do not appreciate re-education. I reiterate. I do not appreciate re-education As soon as I had finished my professional training, and entered the adult world of responsibility, the money was withheld, the friendship and mentorship and camaraderie were withheld, and suddenly, "the economy" (so-called) "required a different skillset". This was, and is, what is commonly known in the kindergartens of America, as a lie. Have Aristotle, David Hume, and Charles

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[61] Nietzsche, Use and Abuse, supra note 9, at 1-68.
[62] Bowen, supra note 33, at 1-346.

Darwin (or, rather, the empiricism inherent in their respective viewpoints) suddenly been revoked and negated? If so, what shining, superlative ideas will this "economy", or for that matter, your most eminent jurisprudence, install in their place? It was a robbery, what was done to me, and a crude and obvious one, and none of us have the time, here, or anywhere else, to haul all the guilty parties in and prosecute. I have spent at least five fruitless years[63] (2020-2025) trying to get even one American adult to take responsibility for their actions, but it seems that the jurisprudential fervor of our particular age has installed procedural hurdles which preclude the exhibition of responsible adult-behavior, among free-thinking, law-abiding men and women.

I have encountered jurisdictional "arguments", sovereign immunity "arguments" (both federal and state; with my answered exceptions, too, as in the U.S. Constitution [64], and in case law [65] [66] [67] [68]), lack of cause of action arguments, stalling tactics, and refusal of lawful and diligent service of papers upon public officials (all of these, except the last one, at the hands of the judges and clerks. I thought it was the Defendants who were supposed to oppose my arguments and accusations and evidences, in court, no less, but I had no idea—my reading of Kafka's *Trial* [69], notwithstanding—that I would have to oppose the random unfounded, partially-founded, and fully-unfounded opinions of the courts themselves! I

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[63] Meyer v. Biden et. al. U.S. Ninth Circuit Court of Appeals, (circa 2024 to present) No. 24-164.
[64] U.S. Const. amend. XI.
[65] Chisholm v. Georgia, 2 U.S. 419 (1793).
[66] Torres v. Texas Department of Pubic Safety, 597 U.S. (2022).
[67] Central Virginia Community College v. Katz, 547 U.S. 356 (2006).
[68] PennEast Pipeline Co. v. New Jersey, 594 U.S. (2021).
[69] Kafka, Trial supra note 1, at 1-304.

must have slept through that chapter in my high school civics class. Regardless of any of our personal political alignments, we can all agree that Kafka's "Der Prozess" [70] was a warning, not an operator's manual. Both the founders and the framers [71] would agree upon this point.). As a student of American behavior (or postmodern, or post-postmodern behavior) these feints are funny and irksome, but also perfunctorily predictable. As student of history, it again seems humorous but, like witnessing a child sticking their fingers in the Jell-O before it has set in the refrigerator; it is entirely predictable, despite the specific and stern parental instructions aimed at forestalling such actions. As a student of humanity, after 20 years of hopeful watching and waiting, I am at long last, finally, disappointed. But you will note, not surprised, and thus, not turned completely hard and cynical.

So, although I have never been one to covet my Seventh Amendment rights [72], or even to have any opinion whatsoever about (1) common law systems versus civil (continental) law systems, or (2) cases at law versus equity cases, or (3) special juries versus regular juries, or (4) Gideon versus Civil Gideon, or (5) Pro Se Supreme Court Cases, you will find me here, today, arguing vigorously for these rights, and more. But I will have you note, the real conversation that is worth having, here, is the one about my First Amendment rights [73]. It is about my right to free academic speech, in a free country, free from religious zealotry and bigotry (including academic "religions", or rather, "intellectual fads" [74]), free from "the new

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[70] Kafka, Trial, supra note 1, at 1-304.
[71] Bowen, supra note 33, at 1-346.
[72] U.S. Const. amend. VII.
[73] U.S. Const. amend. I., i.e. free speech.
[74] U.S. Const. amend. I., i.e. freedom of, and from, religion.

economic religion", and free enough to discuss, before, and among, a jury of my peers, or before the random neighborhood people, or before the special university masters [75], or, crucially, finally, in a court of law [76], amongst judges and lawyers who, presumably, also value free speech, and the plain English meaning of plain English words (and not JUST when THEY are the ones speaking those plain English words). It is this right that I seek, and this right that I claim, and this right I demand, before you, today, in this request for a Writ of Certiorari, in this, the American "court of last resort".

You will especially note, that, in these prefatory paragraphs, how many words I have had to waste in order to get to the crux of the matter, and to speak the words that I wish to speak (and, I am not even half-way there, yet!). The games and legal legerdemain are designed to avoid the topic that I wish to discuss; academic freedom and the chilling effect [77] [78] of illegal economic machinations upon free discourse in the "marketplace of ideas", and in the larger public sphere, and in academia, in general.

II. The Law

> "My sight is failing," she [Clover] said finally. "Even when I was young I could not have read what was written there. But it appears to me that that wall looks different. Are the Seven Commandments the same as they used to be, Benjamin?". For once Benjamin consented to break his rule, and he read out to her what was written on the wall. There was nothing there

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[75] James Oldham, Trial by Jury: The Seventh Amendment and Anglo-American Special Juries, 1-367 (New York University Press 2006).
[76] U.S. Const. amend. VII.
[77] U.S. Const. amend. I.
[78] Wieman v. Updegraff, 344 U.S. 183 (1952).

> now except a single Commandment. It ran: ALL ANIMALS ARE EQUAL, BUT SOME ANIMALS ARE MORE EQUAL THAN OTHERS."~Orwell, Animal Farm. [79]

> "The life of the law has not been logic, but experience.".~Oliver Wendell Holmes Jr. [80]

> "… 'it's quite easy to clear up these contradictions' said the painter [Titorelli]. "We're talking about two different things here, there's what it says in the law and there's what I know from my own experience, you shouldn't get the two confused. I've never seen it in writing but the law does, of course, say on the one hand that the innocent will be set free, but on the other hand it doesn't say that the judges can be influenced. But in my experience it's the other way round. I don't know of any absolute acquittals but I do know of many times when a judge has been influenced. ...:"~Titorelli, in Kafka's "The Trial". [81]

> " '… each of them [the doorkeepers] is more powerful than the last. It is more than I can stand just to look upon the third one. … I'll accept this so that you don't think there is anything you've failed to do. …'. Just before he [the man] dies, he brings together all his experiences … into one question, 'How come … no one but me has asked to be let in?'. The doorkeeper … shouts to him, 'This entrance was meant only for you. Now I'll go and close it.' " ~ The Trial, Kafka [82]

> "[Holmes worked] ... from the assumption that law was neither a logical system nor a set of top-down commands but rather was an evolving set of practical adjustments to the "felt necessities of the time." [83]

I suppose I might sound a bit naïve, claiming to have those rights that every grade schooler has learned and memorized, but that every adult laughs and scoffs at, cynically, when they first encounter someone actually trying to apply said right, in the real world. What accounts for this discrepancy? How could the law, and the history books and the American mythos, of which all citizens may be rightly proud (though perhaps only partially proud; it is an aspirational culture, with many aspirations towards many types of

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[79] George Orwell, Animal Farm, (Secker and Warburg, 1945).
[80] Holmes, supra note 57, at 1.
[81] Kafka, Trial, supra note 1, at 131.
[82] Kafka, Trial, supra note 1, at 182.
[83] Oliver Wendell Holmes, Jr., Natural Law (1918), *reprinted in* Keith E. Whittington, American Political Thought: Supplementary Material (2022), oup.com.

freedoms), get everything so 180 degrees incorrect? What could you lawyers and judges possibly mean when they say "Well, son, you have substantive rights, but no procedural rights to affect or enforce them."? [84] [85] [86] [87] [88] When my father signed up for the Vietnam "conflict", they didn't say, 'Now, here's your service revolver son, but only shoot the VC who are attacking your substantive rights, and leave the preservation of your procedural rights up to the professionals, like us (judges and lawyers).". I am sorry. But the whole process is foolish, and while you might respect the torture of the English language for jurisprudential purposes, I am not amused. A right is a right. A privilege is a privilege. These are two very, different concepts, as every grade schooler knows. If you judges and lawyers want to erode our freedoms--to the severe degree that my five years of federal lawsuits indicates to me that you already have--you must cross out "Bill of Rights" and replace it with the title "Bill of Privileges". The English language demands it. Clover and Benjamin would be disappointed, but Napolean and Snowball would consider it an improvement [89].

I was happy to leave the USA, in 2020. I even sued [90], from Canadian soil, and asked the judge to sever my ties to the U.S. and revoke my citizenship (thus, rendering me stateless and, thus, un-deportable from Canada if immigration difficulties arose in their

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[84] 42 U.S.C. § 1983.
[85] 42 U.S.C. § 1985(3).
[86] 18 U.S.C. § 242.
[87] 18 U.S.C. § 241.
[88] 18 U.S.C. § 245.
[89] Orwell, supra note 79, at 1-92.
[90] Meyer et. al. v. George Bush et. al., Western Washington District, Case no. 2:22-cv-00232-RSM, (circa 2020-21).

legal system). I offered, quite reasonably, as I thought at the time, to throw an egg at the border and declare myself an enemy of the USA, if that would make the paperwork easier. The judge did not seem interested in that solution. And so, I was dragged back to America, to be tortured some more (despite my utilization [91] in Canadian Immigration Court of the Canadian Bill of Rights [92] "right to free association": I did not—and do not--wish to associate with Americans, as I was in Canada seeking political asylum, A.K.A. protection from the Americans.). Poor form, all around. And now, you presume to tell me that I don't have the rights that, just three years ago, everybody (Canadian and American Immigration officials and judges) was insisting to me that the USA affords, *a priori*, *jus soli*, and / or *jus sanguinis*, to its citizens and denizens?

I will be paid for my work. I will be allowed to work with my colleagues, not shut out and shunned and censored. I will receive apologies from the responsible parties, like "grown-ups" do. That is how civilized, law-abiding societies work. That is how they function. And we can start correcting these egregious wrongs, right here, with these pretender lawyers, the Defendants/Respondents in this suit, the traitors who un-forgave the forgiveness of the bad debt that I don't deserve, did not earn, and do not accept as valid, and never will accept as valid (never, so long as my humanity and, especially, my pay is denied.). I remind you, for context, the piddling, trifling sum we are talking about. 12k$, or rather, 20$k with penalties, versus the million dollars, plus, in lost wages [93] that credit-libel and credit-slander

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[91] Canada Federal Immigration Court, IMM-4274-22, 2022.
[92] Canadian Bill of Rights, 1982, Preamble, "Right of All People on Canadian Soil, to Free Association".
[93] Meyer, BLS, supra note 56, at 1.

has foisted, or helped to foist, upon me. My guess is, the taxes that the government would have earned on my salary over these past 20 years, far exceeds that sum which MOHELA and etc. (Nelnet, again, not named in this suit, or the other suits) think that they will receive (i.e. would receive, that is, if I should ever accidentally slip and fall into a lobotomy and forget to not-pay them.).

So, while the invention of the English language is a surprisingly new innovation [94], only bursting on to the Anglophonic scene in the 19th century, let us start by calling "rights", rights, and "privileges", privileges, and move from there (though, we may have to set aside, for the moment, what the meaning of the word "is", is [95].). The District Court judge called me [96], variously, frivolous and vexatious, but I should leave that part of the discussion for the next section, entitled "Vocabulary".

With reference to the law, and to what degree I may rightly claim that I have a Seventh Amendment right [97], and to what degree I might claim that this right was improperly denied me, I find that many have travelled this particular road before [98] [99] and often stumble upon whether or not their suit is considered a suit at common law (my "million dollar", roughly, claim should easily exceed the 20 dollar threshold cited by the Amendment).

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[94] Murray and Minor, supra note 40, at Vols. I-X.
[95] Clinton, William Clinton's Deposition, 08/17/1998.
[96] Meyer et. al. v. Biden et. al., U.S. District Hawaii (circa 2023-2024) 1:23-cv-00470-JMS-WRP.
[97] U.S. Const. amend. VII.
[98] Oldham, supra note 75, at 1-367, especially, 5-24, and 127-212.
[99] Suja Thomas, The Missing American Jury: Restoring the Fundamental Constitutional Role of the Criminal, Civil, and Grand Juries, 1-48 (Cambridge University Press, 2016) (and, perhaps, to a lesser extent, 49-106). See also, Thomas, Suja (

To help me make this determination I have delved into more law--and history of law--books than I care to recount. We might start with some easy background, like that of J.C. Holt in "The Roots of Liberty" [100], "Was there an ancient Constitution? The answer is "no". It is and was a figment.". Further, he states, "the matter is important. … until the medieval foundations are properly delineated, the seventeenth century superstructure cannot be accurately drawn or its novelty properly assessed.". But this is, perhaps, a bit rudimentary, despite his wise advice that foundations matter, since the American system is more interested in "the historical test" and practices as of 1791 [101]. (I suppose "seventeenth century", i.e. 1600s, hits a little too close to home for those of us wishing that 1791 is a good year to start from?).

Is my suit a suit at common law? Yes. It is, perhaps, a "Trespass on the Case", as Oldham [102] discussed, but I find myself a bit partial to viewing it as a merchant case, at contract law or quasi-contract, thus, possibly requiring one of those special juries that Oldham writes about. I know special juries are, like all juries in England, and, even in America, falling out of fashion, but Oldham tells us that special juries were utilized in this country for nearly two-hundred years. Is this not, the vast majority of the life of the nation? I am not certain I would trust my neighbors to understand the intricacies of my scientific debates, or trust them to adequately judge my qualifications versus those of my censoring

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[100] Sandoz, supra note 13, at 22-23. (See also ; Ponmaraki, 1975; Boedenheimer, 1980; Martinez-Torron, 2000; Scvott, 2007; Darell, 2013; Schweber, 2004; Rieman, 1993; Zug, 2021; Lerner, 2021; Sward, 2003; Goldschmidt, 2020; Persaud, 2024; Girvin, 1929)
[101] Oldham, supra note 75, at 138-139 and 208-209.
[102] Oldham, supra note 75, at 9.

and ostracizing colleagues, and censoring and ostracizing actions of my colleagues favorite states, and those States' favorite, and favored, bankers (to wit, MOHELA, and etc.).

Oldham does reference a special jury of academic administrators and that seems amenable to my position and frame of mind. The reason it might count as a merchant case is, because of the recent 1990s-2000s metaphor, namely, "the marketplace of ideas", where presumably, buyers and sellers and craftsmen meet, to sell their wares and merchandise. Certainly, on the "information superhighway", these improvements will have us all wealthy, in no time? But academia is a special kind of guild, producing a special kind of product--certainly not a McDonald's hamburger—and this is quite probably not translatable directly into the "ol' farmer's market" paradigm. As Charles Homer Haskins put it:

> "Far from home and undefended, they united for mutual protection and assistance, and the organization of foreign, or Transmontane, students was the beginning of the university. ... The students of Bologna organized such a university first as a means of protection against the townspeople ... Victorious over the townsmen, the students turned on 'their other enemies, the professors' … "[103]

If we are to honor the origin and the original manifestation of our other crucial, Western "adversarial process"—those besides the courts, and the political "bully-pulpit"—we must take care to view it, not as a mere job training or job placement program (or, *shudder*, "dating service"), but both as guild of masters and novices, and as workers union, capable of facilitating the fair demand and negotiations through a set of proper bargaining rights, as they have always done, of old. This, of course, includes vigorous EEOC

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[103] Charles Homer Haskins, The Rise of the Universities, 1-134 (Henry Holt Company 1923).

enforcement [104], amongst other meritocratic measures. Justin Morill [105] [106], the Civil-War era Republican from the Vermont U.S. House seat that I ran for, in 2014 [107] [108], would most wholeheartedly agree, as would, at the very least, among "The Ivies", Ezra Cornell, in his famous motto " "I would found an institution where any person can find instruction in any study."

Echoing Cornell's comments, Stephen Jay Gould, world renowned evolutionary biologist and Paleontologist—and no stranger to this court, though perhaps unknown to these precise members--is quoted thusly:

> "Unfortunately, the assumption that you can do such a thing, tied to the use of such theories by conservative social ideologies, has had profoundly negative consequences for the lives of millions of people. There are millions of people, particularly in this country, who have been told they can't do this, you've been denied admission to this or that program, on the basis of a number, which was falsely interpretated as representing an intrinsic limit upon them, based on their biology, but was in fact only a measure of social influences upon their lives. So unfortunately, it's not funny when it's had such tragic consequences. And that's of course why we are upset over the fact that the issue seems to keep coming up. Because it has consequences, it hurts people." [109]

For the Federalist wing of the court, we may stop, briefly, to cast an eye upon the context of the Convention and the intents of the framers (as well as the founders). Catherine Drinker Bowen reminds us that:

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[104] Randall Meyer, EEOC # 523-2008-00852 and #523-2008-00851 , circa Summer-Fall, 2008.
[105] 7 U.S.C. 301.
[106] 7 U.S.C. 321.
[107] Meyer, VPT, supra note 34, at #.00:00 through 82:52.
[108] Meyer, CCTV, supra note 35, at 00:00 through 94:32.
[109] Stephen Jay Gould, IQ and 'Math' as a Mis- 'Measure of Man / Wo-Man', VHS / Youtube interview, (circa 1995). See also "Structure of Evolution Theory", circa 2001, pg. 7, for comments on "anathema" and the perils of scientific dogma, fads, and ostracism.

> "Shay's Rebellion had been in the public mind when Congress, after debating the Annapolis Report, had voted in favor of a Convention at Philadelphia. Even so, Congress proceeded cautiously. The Annapolis Report had hinted that not only trade and commerce, but the entire federal system might need adjusting. Congress resolved that the Convention was to meet "for the sole purpose"—the phrase was soon to become a byword and a strength to the Anti-Constitutionalists- 'the sole and express purpose of revising the Articles of Confederation.'. " [110]

If we are to have strict constructionists, are we not entitled to demand a review of what the authors of the Articles of Confederation were thinking? What was Patrick Henry thinking, when, as Bowen reports, "Patrick Henry was conspicuous by his absence. Named to the Convention, he refused, saying he "smelt a rat"." [111]. Further, Bowen states :

> "Seventy-Four delegates were named to the Convention at Philadelphia, in the end fifty-five turned up. Two men of eloquence were absent; the Convention missed them but felt their hand. John Adams was in London, Thomas Jefferson in Paris, arranging treaties of commerce and foreign loans ... " [112]

And, "When Jefferson in Paris read the names he said it was "an assembly of demi-gods". [113]

How narrow should this court, or any court, construe my plainly written rights, if, the very document that they divide so finely was foisted upon a marginally unwilling nation, and, hinging on a word or two, turning on a technicality, the "demi-gods" deliver an entirely

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[110] Bowen, supra 10-11.
[111] Bowen, Id. at. 18.
[112] Bowen, *Id.* at 11.
[113] Bowen, *Id.* at 4.

new document, despite explicit instructions to the contrary, to a nation weary of war, and suspicious of novelties in governance? Bowen continues:

> "It was a young gathering ... James Madison ... father of the Constitution ... was only thirty-six ...Benjamin Franklin's eighty-one years raised the average considerably, but it never beyond forty-three." [114] (pg. 4).

The new document delivered, and argued, and passed, it was a fait accompli, but the veterans and farmers in Shay's Rebellion would most likely remember what had occurred, and how the power shifted, as might, afterwards, the Whiskey Rebellion participants. A strong central government was delivered, but a Bill of Rights was demanded (i.e the Massachusetts Compromise). The Bill of Right is ALSO the law—the supreme law of the land--not just the "Constitution proper"; not just the *fait accompli* devised during the Federalist reaction to the unruly insurrections. The states would not have ratified without a promise of a Bill of Rights. It is part of our "social contract", in the loose, unenforceable sense, but also, quite enforceable, as I have shown you already, and as I have argued vigorously throughout all these court documents, these past five years. If you continue to refuse my rights, procedural and substantive, I will leave this country and find another; one where the words spent are meaningfully spent. I claim those broad rights to life and liberty and property (and/or happiness), but also the more specific procedural rights that I wish to utilize, here, and in my regular life, as I attempt to do the substantive work of a free-thinking academician.

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[114] Bowen, *Id.* at 4.

In short, as a matter of law, and as a matter of both the founders and framers intent—since the framers were intent on having their Constitution ratified, and the wider group of founders were intent on retaining rights they fought for, including, rather crucially, their access to courts of law—Petitioner claims his right to jury trial , in a federal civil proceeding for a matter of common law, exceeding 20 dollars value. [115]

III. Vocabulary

> "It depends on what the meaning of 'is' , is."~William Jefferson Clinton [116]
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> "If the—if he—if "is" means "is and never has been", that is not—that is one thing. If it means "there is none", that is a completely true statement".~William Jefferson Clinton [117]
>
> " [It] must be called by its true name: modern slavery. "It is barbaric and it is evil and it has no place in a civilised world."~Barack Obama [118]
>
> "CLINTON: We have an architect in the audience who designed one of your clubhouses at one of your golf courses. It's a beautiful facility. It immediately was put to use. And you wouldn't pay what the man needed to be paid, what he was charging you to do… TRUMP: Maybe he didn't do a good job and I was unsatisfied with his work…"~DFPTDJT [119] .
>
> "He says, 'You're not going to be a dictator, are you?' I said, 'No, no, no, other than day one. We're closing the border, and we're drilling, drilling, drilling. After that, I'm not a dictator.'"~DFPTDJT [120]
>
> "Trump calls himself "the king" after announcing challenge to NYC congestion pricing"~DFPTDJT [121]
>
> "They [Republicans] were willing to default on our debt unless, ah, they got their way on repealing the healthcare bill. And I took the lead in the Democratic caucus, saying, look, Americans pay their bills. Vermonters pay their bills. Can you imagine not paying your

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[115] U.S. Const. amend. VII.
[116] William Jefferson Clinton, quoted in the 106th Congress, Senate doc. 106-3, Volume XI, Evidentiary Record
[117] Clinton, 08/17/1998.
[118] Obama Anti-slavery. President Obama, in a speech to the Clinton Global Initiative. September 25, 2012.
[119] Trump-Clinton Debate. Donald Trump, admitting in a nationally televised debate, that he is a slaveowner, and a common criminal. September, 26, 2016.
[120] Trump on Hannity. Trump (A.K.A. DFPTDJT), "King Donald I"", on Hannity.
[121] Trump, as King, Tweets. News reportage of the personal "tweets" of DFPTDJT, "King Donald I".

> mortgage because you got irritated with your neighbor or your banker? That would never happen. … Because, we would destroy the credit rating of the United States. … I was the leader, ah, on saying 'America pays its bills', and 'We don't play games with the full faith and credit of the United States.'."~Peter Welch[122]

> "Well, I used to say that I was, ah. so far left that I was right … I'm a scientist. It's really the best of both worlds [i.e. liberal and conservative]. … I can tell you … nine out of ten times, I'd vote with the Democrats. By everybody's admission there is quite a bit of game playing, down there. … I'm tired of the dog-whistle politics… there are certain phrases they say, and all of us are supposed to hear what we want to hear, and vote accordingly. … and even the budget has just become another, uh, pawn in some political chessboard. … Somebody used the word "endgame" which is a wonderful little chess metaphor, from different century. "~Randall Meyer [123]

Black's Law Dictionary [124] is, perhaps a hair's breadth better than Samuel Johnson's [125] attempt at a comprehensive English dictionary--despite Johnson's entry for "patron" as "as "one who countenances, supports, or protects; commonly a wretch who supports with insolence, and is paid with flattery,", and "oats" as "A grain, which in England is generally given to horses, but in Scotland supports the people."--defines frivolous in the following manner; "An answer or plea is called "frivolous" when it is clearly insufficient on its face, and does not controvert the material points of the opposite pleading…"

I will interrupt the verbatim quotation at this point to note, no opposite pleading has been entered by the cowards and poltroons that I am suing, in THIS suit, at common law, for a value exceeding 20 dollars; this is so, presumably, because they consider themselves above reproach, above the law, and can thus, act, as the kings and nobility of old [126] [127] (with

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[122] Meyer, VPT, supra note 34; Rep. (now Sen.) Peter Welch, Public Access channel 17 Burlington, VT, October 10, 2014. 11:00 minutes into the debate, file #1.
[123] Meyer, VPT, supra note 34 ; Randall Meyer, Public Access channel 17 Burlington, VT, October 10, 2014. 17:57 minutes into the debate, file #1.
[124] Black's Law Dictionary (1st ed. 1891).
[125] Samuel Johnson, A Dictionary of the English Language, (J. and P. Knapton et. al. 1755).
[126] U.S. Const. art. I § 9, cl. 8.
[127] U.S. Const. art. I § 9.

impunity. I will note, at this point, also, that, growing up as I did in the 1980s and 1990s, the phrase "American Empire" was always either whispered, or chuckled or chortled through, or dismissed as a wild liberal fantasy that one might read about in "The Nation", or other such "liberal" publications, but increasingly, in the 21st century, the "imperial presidency" and now, "unitary executive theory" have replaced this formerly-non-debated style of mockery with a sort of disinterested *fait accompli* apathy. National and international news sources, and within the editorial pages, reference is made, routinely, to the American Empire and it is not laughed or mocked, or doubted, or vigorously opposed. This is not healthy for the Post-WWII consensus of world order. But it is, perhaps a more precise and accurate description of the state of the UN and the global balance of power among nuclear and non-nuclear states. This is a question, despite being a bit "above our pay grade", of some very crucial relevance, in this present suit, and in the former ruling on this same issue. [128]

Petitioner, in his Hawaii District filing [129], spent a lengthy column of verbiage arguing that Biden had every right (in addition to Biden's proper executive order under the HEROES act, the same act that DFPDJT had earlier acted to pause payments, and which Biden had used to properly cancel the debt entirely), to issue an executive order cancelling student loan debt, on the grounds of improving national security [130] [131] [132] ; for the provision of healthy minds is as important to the defense of the nation as that of healthy bodies; to wit,

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[128] Biden v. Nebraska, supra note 8, at 1-all.
[129] Meyer v. Biden et. al., 2023-2024. 1:23-cv-00470-JMS-WRP. (See, also, as concerns Petitoner's request for mandamus, Marbury v. Madison; NTEU v. Nixon, U.S. v. AT&T, 1982, and 28 U.S.C. § 1361).
[130] 7 U.S.C. § 2011 et. seq.
[131] 21 U.S.C. ch. 12 §§ 601 et. seq.
[132] 7 U.S.C. § 301.

such a "unitary executive" has wide latitude to make such arguments, though, they are not necessary, since, I also argue in this suit, Biden was well within his rights (and correctly delivering upon his duties) to utilize the HEROES act in the fashion that he did. I further allege that the AGs (the other Defendants/Respondents) were utilizing law for vindictive and shallow political purposes, in a traitorous fashion, in a way that is certain to weaken the nation, and done merely for their own private, "professional", political benefit. Illiterate, debt-laden citizens, captured in debt-penury, "wage-slavery", and modern day blue and white-collar slavery [133] [134] [135] [136] [137] [138] [139] [140] [141], cannot resist the psy-ops of the future, and present, nor can they array the power of the atom, or of DuPont and Lavoisier and Nobel's black powder, and / or smokeless powder, in our nation's defense. It would take a lawyer to re-define the English words "intellect", "debt", "slave", "frivolous", "vexatious", "atom", "science", and "is" and several other words, to convince the thinking free-world that this is not an issue of national importance, and, thus, one that falls well within this newfound, albeit "tenuous", theory of the "unitary executive".

Does this newfound theory of the "Unitary Executive", or its temporary application in my case, run afoul of the "Major Questions Docrtrine', or are these two legal theories only trotted out when it suits a particular wing of the givernment, or a particularly vocal and

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[133] U.S. vs. Flores, 521 U.S. 507 (1997).
[134] U.S. vs. Cuello, 357 F.3d 162 (2d Cir. 2004).
[135] U.S. vs. Tecum, 48 F. App'x 739 (11th Cir. 2002).
[136] U.S. vs. Lee, 159 F. Supp. 2d 1241 (D. Haw. 2001).
[137] U.S. vs. Ramos, 375 F.3d 797 (8th Cir. 2004).
[138] U.S. vs. Ronald Evans, 478 F.3d 1332 (11th Cir. 2007).
[139] U.S. vs. Navarrete, 555 F.3d 170 (4th Cir. 2009).
[140] U.S. vs. Bontemps, 629 F.3d 201 (D.C. Cir. 2010).
[141] U.S. vs. Global Horizons, 711 F.3d 1157 (9th Cir. 2013).

obstreperous, out-of-power political insurgency? If our putative unitary executive, some hypothetical future president, declares that the answers to all major questions lie squarely under the purview of their own right to judge what is necessary for the nation's defense, then it seems to hold that Congress has no say, whatsoever, in the running of the government? Both of these broad legal theories can, obviuously, be driven to severe and radical extremes, and while I am asking for leniency, on both accounts, so that Biden may lean heavily on executive orders for purposes of defense, and for "intellectual health", I also point out all the extenuating circumstances; though perhaps vague and peripheral as they are, they also are centuries in the making, and they also follow the thread of purposes applied by many Congresses, as they actively sought the BETTERMENT of their citizens lives, not a deliberate worsening of quality and degradation of their condition, through the cowardly erosion of their substantive civil rights; their Bill of Rights, guaranteed rights. This court, this administration, the last administration, and all Congresspersons this side of the millennium know that the American people are owed at least this much, if not more.

Returning to Black's [142] " … material points of the opposite pleadings, and is presumably interposed for the mere purposes to delay or embarrass the plaintiff.". Setting aside the fact that I am the Plaintiff in the proceedings, we can also note that I wish to expedite the process, not delay, as I would like to begin my life as a professional scientist, but I, apparently, must first vanquish my functionally-illiterate foes. With regards to embarrassing them, I do hope to embarrass professionals who act in such an uncivilized

[142] Black, supra note 124, at 522.

manner, but it not my sole purpose, as I am most eager to effect justice and law-abiding behavior on all sides. If I must apologize for oversteps, at the end of the process, I will do so. I am a pretty "Big Man", and can admit when I am wrong. But we are going to get my money first, and my apology second, and then worry about other people's "feelings". A slave-owner—or person aiding and abetting a slave-owner [143] [144] [145] [146] [147] [148] [149] [150] [151] [152] [153] [154] [155]--who catches "feelings", is not a worthy target for our pity, nor for the protections, supplied by judges and clerks, sheilding them from allegedly "frivolous" actions at law. In short, let's have the lawsuit and see who is telling the truth, after all matters of fact and law have been decided.

Black's continues :

> " … A frivolous demurrer has been defined to be one which is so clearly untenable, or its insufficiency so manifest upon a bare inspection of the pleadings, that its character may be determined without argument or research. 40 Wis. 558.".[156]

As I have stated, the opposing side has offered zero arguments and, presumably, is relying upon their "golfing buddies" to scuttle the lawsuit without their gentlemanly

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[143] U.S. vs. Flores, 521 U.S. 507 (1997).
[144] U.S. vs. Cuello, 357 F.3d 162 (2d Cir. 2004).
[145] U.S. vs. Tecum, 48 F. App'x 739 (11th Cir. 2002).
[146] U.S. vs. Lee, 159 F. Supp. 2d 1241 (D. Haw. 2001).
[147] U.S. vs. Ramos, 375 F.3d 797 (8th Cir. 2004).
[148] U.S. vs. Ronald Evans, 478 F.3d 1332 (11th Cir. 2007).
[149] U.S. vs. Navarrete, 555 F.3d 170 (4th Cir. 2009).
[150] U.S. vs. Bontemps, 629 F.3d 201 (D.C. Cir. 2010).
[151] U.S. vs. Global Horizons, 711 F.3d 1157 (9th Cir. 2013).
[152] Wood v. Ward, 30FED.CAS—31 (1888). 476 (C.C.S.D. Ohio 1871) (No. 17,965).
[153] U.S. Const. amend XIV. § 1, 3-4.
[154] 42 U.S.C. § 1983.
[155] 42 U.S.C. § 1985.
[156] Friviloous, Black, supra note 124, at 522.

meeting, under the auspices of a fair and even court of law [157], in a nation where no nobility reigns [158], and law and order is respected [159]. Their negligence is doubly disturbing, given their position in public affairs, and in positions of public trust. Their supposed actions, under color of law, supposedly on behalf of their respective States, impair my right to contract—and, specifically, lawful extinguishment of contract, via lawful orders of a duly elected, legitimate president—vioaltes the U.S. Constitution [160], and, additionally, is both a criminal and civil violation of my civil rights [161] [162] [163].

Similarly, "vexatious" reads thusly:

> "A proceeding is said to be vexatious when the party bringing it is not acting bona fide, …" [164]

An excellent irony, we find here, since (a) I am the injured party, (b) they are the "dodging", non-bona-fide parties, and the lawsuit is the mechanism by which we determine who is telling the truth and who is misrepresenting the facts. I am a scientist. I want to do my work. I demand the money for the work I have done, and an apology from the liars who say I have not done the work, or that the work is not quality work. I demand an apology from them too. The apology, at this point, is more important that the money. Half my working life has been taken from me. And liars took it.

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[157] U.S. Const. amend. V., cl. 4.
[158] U.S. Const. art. I § 9, cl. 8.
[159] U.S. Const. art. IV § 4.
[160] U.S. Const. art. I § 10.
[161] 42 U.S.C. § 1983.
[162] 42 U.S.C. § 1985(3).
[163] 18 U.S.C. §§ 241-242, 245.
[164] Black, supra note 124, at 1-all..

Black's defines "bona fide" as :

> " In or with good faith; honestly, openly, and sincerely; without deceit or fraud." [165]

It does not get any more honest and open and sincere, than for a man to say "I don't care if no lawyer will represent me. These people lie. It injures me. It takes my money and my value. It is an illegal, repeated, and egregious injury. So, I will learn the law and I will make them pay, in a court of law, for the injury that they do, and to recover at least some of the value they have stolen and/or damaged.". To this end, I offcially invoke, here, the U.S. Constitution [166], right to counsel, and right to notice and conforontation, as my barring from work in academia is a Kafkanian trial [167], for an unstated, unwhispered crime, reminiscent of the dark days of the cold war red-scare violations [168] [169] [170] [171] [172] [173] [174].

Black's, on "vexatious", continues:

> " … and merely wishes to annoy or embarrass his opponent, or when it is not calculated to lead to any practical result. Such a proceeding is often described as "frivolous and vexatious" and the court may stay it on that ground. Sweet.".

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[165] Black, supra note 124, at 1-all.
[166] U.S. Const. amend. VI.
[167] Kafka, supra 1999.
[168] Gitlow v. New York, 268 U.S. 652 (1925).
[169] U.S. Const. amend. XIV, § 1.
[170] Meyer v. Nebraska, 262 U.S. 390 (1920).
[171] Adler v. Board of Education, 342 U.S. 485 (1952).
[172] Keyshian v. Board of Regents, 385 U.S. 589 (1967).
[173] Scopes v. State, 154 Tenn. 105, 297 S.W. 363 (1927).
[174] State of Tennessee v. John Thomas Scopes. Rhea County, Tennessee, July, 1925..

I have not denied my wish to embarrass slave-owners, libelers, slanderers [175] (defined, in federal cases, in 28 USC § 4101), and cowardly poltroons [176] [177], but it is not a wish with such limited, invidious purposes. I wish this, in addition to receiving justice, in the proper way and fashion, as I have prescribed in the lawsuits*, in toto*. Now, betting on whether any practical result will occur, is probably something that should not occur prior to the setting of a court date. Perhaps, when the proceedings begin, I will take bets on whether or not I will succeed? What is the point spread? Do you get my meaning, here? This is "dirty dealing" when we assume, *a priori*, that a Pro Se litigant is incompetent, and thusly, not serious in seeking justice, citing law and authority and precedent, properly, and appropriately seeking the proper, just and fair process, in an appropriate court of law. I may be a "log shot" but I am seriously utilizing my rights, and I defy any man woman or "creature-otherwise" to tell me that I am not serious about effecting utilization of these rights and receiving damages for wrongs done. I may be only marginally competent as a lawyer, but I command a prodigious vocabulary, and I can decipher the English of Blacks's [178] and juxtapose it to that of Murray and Minor [179]. I do not believe it is proper for a judge, justice or magistrate to bet on the underdog, or overdog, in a suit, as they should be judging the fairness of—and ensuring access to—the process, not assigning percentages to either side's likelihood of winning [180] (I suppose one must "choose one's battles" and "be frugal with one's time", but just how much justice may be denied while these limited resources are

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[175] 28 U.S.C. § 4101.
[176] Jackson, supra note 43, at 1-4.
[177] Jackson, supra note 44, at 1-3.
[178] Black, supra note 40, at 1-all.
[179] Murray, Minor and Smith, supra note 40, at 1-all..
[180] U.S. Const. amend. V, cl. 4

husbanded?). When a judge sizes up the adversaries, before the "contest" begins, they may tip the scales, at any moment, with their thumb, having already decided the winner, in their pre-judgement.

A few more final notes before we leave Black's dictionary [181], for the words of the wider world, and these shall take the form of the entries on "vexation", "vex", and "vexed question". Vex is "to harass, disquiet, annoy; as by repeated litigation upon the same facts.". And yet, while I have engaged in repeated litigious attempts, I have yet to secure a single suit, and zero facts have been asked or answered, in any sort of official proceedings. Justice denied, is justice denied, as the saying should probably go. I will probably continue filing suit until some sort of proper proceeding occurs, so it should not be wondered as to why repeated suits occur. The entry for vexation reads "The injury or damage which is suffered in consequences of the tricks of another.". Huh? That is very curious. Since I am the injured party here, that would seem to imply that the non-answer to my suits, by the AGs, and by the arrangement of their friends, the probably-partisan judges, are the vexatious actions, causing injury to me, and thus, Defendants/Respondents are vexatious in their labelling me vexatious. A fine irony, again. I suppose a person who is vexed can easily be mistaken for a person who is vexatious, by those who are vexatious towards he? Lawsuits embarrass and annoy everybody, I guess, is the take-home message from this line of argument. But it is far more embarrassing and annoying to be denied one's day in court, after honestly and intelligently pleading and demanding one, than it is to be served papers from somebody you have

[181] Black, supra note 124, at 1-all..

allegedly injured, but never heard of before. Finally, a vexed question is defined as "A question or point of law often discussed or agitated, but not determined or settled.". That actually seems like a fair description of what we have here. I am hoping that this vexed question, that of a Pro Se litigant seeking justice, and only receiving Kafkanian [182] [183], Orwellian [184] games in response, is an interesting enough "vexed question" to gain the attentions of this court, or maybe even, beyond that, inciting their ire (enough, perchance, to award damages and overturn their error, and the errors of the lower courts and appeals?)?

If we consult this most recent invention referred to as "The English Language", with Murray and Minor's dictionary [185], we find some delightful consonance with the present, since, under the entry for 'frivol", in the second sense we have : "Frivolous, of little account, paltry, trumpery, absurd" and while I am inclined in the jocular sense to agree--this case has entirely too much "Trumpery" in it--I fear you would take my meaning the wrong way, and think that I thought my accusations were trumpery and not as I intend, that Trump's actions—and the actuions of his "minions—are "Trumpery". But please do recall, Trump is the present pretender King, and the original suit was trying to get one responsible adult (possibly, even, Joseph biden?), anywhere in the US government, to enforce one law, after twenty years of crushing unemployment, undeserved, and torturous, suffered by Petitioner, at the hands of the ersatz-nobility, in a supposedly "nobility-free" society [186].

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[182] Kafka, supra note , (1999).
[183] U.S. Const. amend. VI
[184] Orwell, 1948. Id.
[185] Murray and Minor's dictionary 1857, and 1884-1928, A.K.A. "The "O.E.D.".
[186] U.S. Const. art. I § 9, cl. 8

Now, while I would like to advance a logical discourse on why Black's dictionary, and the common usage of "frivolous" and "vexatious", simultaneously, in conjunction with one another, is almost always incorrect and illogical, and self-contradictory usage, I am afraid I must leave it as a homework problem for you. The hint is this. Make a Venn Diagram. Assume one or the other is true. Then ask yourself, under what circumstances would it even be possible that the other one could be simultaneously true. You will find the instances to be infinitesimally small (unless of course you count, cases where multiple claims are made, and some are proven frivolous, while others are proven vexatious. And yet, you would still have the problem that, without a trial, no proof is viewed to ascertain the validity of even one claim, much less its ability to be simultaneously both species of "unfounded and groundless"). And you would still have the problem that, say, for example, 3 minor claims could be frivolous, and 2 minor claims vexatious, but one or two major claims could be quite well-founded and, in point of fact, egregious abuses. If the judge throws it out because something irked him about one of the claims, the other claims are never heard. I suppose that should impose upon me the obligation of not offering any claims that even hint at the absurd, but, the problem here, is--the life of the law being experience, via Holmes [187] [188]--here, "on the outside", in a world where Camus [189] is allowed to write about the absurdity of the human condition, and we are allowed to live human lives that often follow the adage "truth is stranger than fiction", I cannot, factually, provide you with an account of a non-

[187] George, supra note 5, at 1-all.
[188] Bogen, supra note 4, at 1-all.
[189] Camus wr.1942, tr.1955, 2000 printing.

absurd world. I find the actions of my counterparts, the opposing side, to be so remarkably foolish as to be almost unbelievable. And yet they clearly did, and are doing, the very thing that I say that they are doing. In short, if an account is truly frivolous, it should be incapable of producing vexation; if it is intended to vex, even a ltitle, then it cannot have been sent with frivol in mind.

I am afraid, I have run out of time and space to describe, here, in the section on "Vocabulary", and I even must cut short the sections on "History" and "Philosophy" now, too. I will attempt to spend a good amount of time on my own personal "Science", and on plans for the future, as an offering of evidences for my "bona fides" and the seriousness with which I regard my professional obligations; and of the lengths to which I will go to to see that the job gets done properly, despite the illegal and negligent and malfeasant and reckless actions of the various governmental, societal, financial, academic, and corporate actors.

One final note on etymology, from the OED [190], "frivol" seems to derive from "freewill" and thence to "frevil" and "frevol". Rather ironic, in this Free Speech case [191], don't you think? Denied my free will, academic speech, and procedural and substantive rights to claim my free will and speech, because of a judge-issued slander against my character using the very word, whose deriving word, is the right that I wish to claim?

IV. History

[190] Murray and Minor's dictionary 1857, and 1884-1928, A.K.A. "The "O.E.D.".
[191] U.S. Const. amend I

This space was left for a short mini essay on the common law, the ancient constitution, the magna carta and the source(s) of the right I am claiming. But it seems time and space will not allow, so I must save the scholarship that I have done, for the filed brief and / or oral arguments. Expect to hear about the Forest Law, the Starr Chamber, and the expectation of the founders' that their historical rights would not only be secured by their Revolution, their Confederation, and the subsequent Constitution, but would be continued, indefinitely, into the future, for as long as the government they created remained viable, and did not fall into the category of an "failed state", subject only to anarchy of the powerful, and a dictatorship of the "color of law" variety.

I have also neglected, up to this point, to cite Ferdinand Lundberg's work [192] and you may expect that I will utilize this work, and FDR's quotation and comments about "economic royalists", and the juxtaposed fact of his son's marriage to a DuPont, and a humorous, though slightly sick anecdote about the history of the DuPonts, and how they arrived, January 1, 1800, in this country; to wit, the telling of United States History has been remiss, in its de-emphasis upon the "Early Robber Barons", and its de-emphasis upon the "ersatz-aristocracy" that has arisen in America, due to the outlawing of the "aristocracy-proper" [193] . Lundberg [194] names names, and lists the severity of the situation, as of 1937. His update [195],

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[192] Lundberg, Ferdinand "America's Sixty Families" (1937). (See, also, G. Myers "History of The Supreme Court", 1912.).
[193] U.S. Const. art. I § 9, cl. 8
[194] Lundberg, Ferdinand "America's Sixty Families" (1937).
[195] Lundberg, Ferdinand, "America's Super-Rich" (1968).

"modifies" the position, a bit, but this state of affairs essentially stands, today, perhaps with thousands of families rather than tens. The abandonment of the Mertitoracy—in large part by "Captain Bonespurs" and "Corporal State-Sider-Jet-Jockey"—is an international embarrassment, and crime, as I have outlined above.

In the next section, truncated again, I will outline the sad state of both philosophical education, and implemented philosophy in the lives of the average American, and indeed, in the bulk and body of the populace.

V. Philosophy

Americans, on the whole, are a very unphilosophical bunch. As Darnell Rucker has put it :

> "Pragmatism remains the one philosophic outlook that is native to the United States. Also, there have been many schools of philosophy in America, groups of men who shared a concern with the propagation of particular philosophic theories. Some, notably the St. Louis School and the Concord School in the latter part of the nineteenth century, were the creations of strong individuals with missionary spirits. Others were pockets of Scottish commonsensism or German idealism in universities such as Yale, Cornell, Boston, and Johns Hopkins. In each case, however, the philosophizing in these schools was more a defense of some basically European way of thought than a search for a new way.". [196]

Or, as the British comedy troupe Monty Python [197], in a sketch entitled "Middle Age (Americans)", in their movie "The Meaning of Life", cuts a little too close to the bone, when the waiter says "That's philsophy." and the American tourist replies "Is that a sport?".

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[196] Darnell Rucker, supra note 38, at 1-all.
[197] Monty Python's "the Meaning of Life", 1983.

VI. Science

"Origin of man now proved, Metaphysics must flourish—He who understands baboon would do more for Metaphysics than Locke."~Charles Darwin [198]

"Ira furor, brevis est"~Charles Darwin [199]

In October 2003 I derived Meyer's (Linguistic) Law [200], whilst studying for the GRE, graduate school exam. I utilized the permutation and combination equations and I adapted them to a sort of half-Chomskyan, half-memeticist view of cultural evolution and lingusitic perfomance. This view firmly resides within the empiricist program, and is only slightly modiofied from the "tabula rasa" notions of Locke [201] and the concepts of "impressions and "ideas" as utilized by he, and Hume [202].

After a brief stint as a food technician (2005), primarily performing the Babcock butterfat test, and several other menial chores, I had occasion to work in a semiconductor factory (2006) as a rapid thermal anneal technician. The money from the food factory had bought my first serious electronical engineering and optics books [203] and the time and free space of the semiconductor job gave me the opportunity to study those works in more detail. I basically trained myself too be an optical and electrical engineer, and I simultaneously embarked upon a study of the physics and physiology of the functional human eye. My only

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[198] Charles Darwin. M Notebook, August 18, 1838.
[199] Charles Darwin, recalling his father's wisdom, but, ultimately, via a Horace quotation. M and N notebooks, 1838.
[200] Meyer "Big Yellow Optical and Electrical Engineering Notebook. See, https://ladnarofladner.github.io/index.html , Retrieved 03/28/2026. See, specifically, page 57?? For the 2010s official note on the 2003 derived law, VN^2 = S .
[201] Locke, Essay ?
[202] Hume, Essay ?
[203] Janesick, 2001

official training, a Marine Biology B.S. degree, was usefuly applied, but I still desired, very much, to publish Meyer's Law and to go and earn a Ph.D. in evolution biology, with a special expertise in cultural evolution and / or cultural anthropology.

See Appendix I. for a short, one page precis of the historical perspective of my particular science.

VII. Art

"Senseless, Heartless, Thoughtless, Fiend; I read you in a magazine; Check your hands, I'm sure they're clean; But empty is your cavity"~Randall Meyer, circa 2017[204]

'To live outside the law, you must be honest, I know you always say that you agree"~Bob Dylan, in "Absolutely Sweet Marie".[205]

"The Anomie of my Enmity is my Fiend; But with Fiends like this, who needs Enmity?"~Randall Meyer, circa 2017[206]

"Spouted out that Liberty is just Equality in school; Equality, I spoke their word, as if a wedding vow; Ah, but I was so much Older then, I'm Younger than that now."~Bob Dylan.[207]

"All of the liars and the cheaters still surround me
Think themselves clever in their multiple evasions
The years pass by and their reputations hound me
But they are still living, tucked inside of my Equations
Tomorrow, tomorrow and tomorrow,
Like something out of a Vonnegut novel
Tomorrow, tomorrow and tomorrow,
Leaders only lead if, somebody follows…"~ Randall Meyer, circa 2013[208]

"In the courtroom of honor, the judge pounded his gavel; To show that all's equal and that the courts are on the level; And that the strings in the books ain't pulled and persuaded; And that

[204] Meyer
[205] Dylan
[206] Meyer
[207] Dylan
[208] Meyer

> even the nobles get properly handled; Once that the cops have chased after and caught 'em; And that the ladder of law has no top and no bottom …;'~Bob Dylan, in "Hattie Carrol"[209]

VIII. Summation

In summation, I draw your attention to the first page of the Biden v. Nebraska[210] Certiorari filing. The two opening passages here suggest my own forgiveness be given as a matter of fact and law, and in the obvious furtherance of the broader interests of maintaining justice, in these United States The Department of Education can forgive loans if a person becomes permanently disabled and the credit-libel and credit-slander I have endured has made me unemployable, for twenty years and, barring my capitulation to this censorship tactic by the ersatz-aristocrats[211] of the "New American Century", I will never be capable of employment again. I am an evolution biologist, and you are no longer a Democratic-Republic (factually, though controversially, the Martins Gilens[212], Princeton study has determined that something like an oligarchy is the official, empirically evidenced mode of government in the U.S.A.. The constitutional guarantee of a republican form of government to the states is enshrined in Article IV, Section 4 of the U.S. Constitution[213], and reads "[The United States] … guarantee[s] to every state in this Union a republican form of government". By such logic, my own state(s) of Vermont and / or Hawaii should not

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[209] Dylan
[210] Biden v. Nebraska Certiorari Filing, No.22-506; Feb 2023-June 2023
[211] (See Ferdinand Lundberg, 1937, "America's Sixty Families" for an empirical study on the new faux-aristocracy)
[212] Martins Gilens, 2014,
[213] U.S. Const. art. IV § 4.

have to endure the petty tyrants of another state, their illegal acts in subverting a President, nor should they have to endure their supposed, alleged "sound financial advice for the future …" from patently unsound thinkers, from manifestly unsound states. Do please note, that in my Hawaii U.S. District Court filing[214], one example is that infamous Arkansas case of missing Smithsonian money, circa 1830s-1900, and, again in 1920, with their failed road improvement bonds. In the former case, John Quincy Adams himself had to arrange for the U.S. to make good on its promise of a national museum. Modern day Arkansas, and their "AG", Mr. Timothy Grifter, having offered no answer to my suits, is mute on the same subject. The situation of this present suit is directly analogous.). I will not work for people who violate, with impunity, my freedom of speech, and of thought. You, "The United States", presumably, nor anyone within your "union", such as it is, will ever employ someone who accuses, so vigorously, with erudition, logic, empiricism, veracity, and insight, them of such base and degrading violations and behaviors. We shall be at an impasse, for the foreseeable future, i.e., to wit, for the next twenty years of my working life, until it is time to retire, at age 63-65.

Further, the second paragraph of the Biden v. Nebraska ruling[215], while concluding the HEROES act does NOT forgive me my loans, in a beautifully ironic statement has provided us all with a wonderful opportunity to teach a lesson in logic. Perhaps Mr. Oliver Wendell Holmes[216-217] fails us here, and we must rely instead on poor old ostracized,

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[214] Meyer v. Biden et. al., supra note 129, at 1-all.
[215] Biden v. Nebraska, supra note 8, at 2nd paragraph.
[216] George, supra note 5, at 1-all.
[217] Bogen, supra note 4, at 1-all.

censored Charles Sanders Peirce, the polymath, fellow "Metaphysical Club" founder[218], early inventor and discoverer of "Functional Completeness", and of electrical computing, in general, and the only person to ever found an entire school of philosophy here, on the soil of this "Western Hemisphere". Yes, logic is important in law. Mr. Roberts recent, 2025, speech to Georgetown law students[219] reminds us that *ad hominem* attacks are an unwelcome feature in our modern jurisprudence, and daily life, but he would also be wise to remember--and to teach and to lecture, to others--that other logical fallacies are quite popularly infectious in our modern age. *Reductio ad absurdum*—and not frivolous or vexatious arguments, though arguably, still quite facetious, obstreperous, and disputatious--I have sprinkled liberally throughout this, and other documents. But it should also be quite apparent that there is another fallacy that occurs frequently, these days; the *Tu Quoque* fallacy. While the Biden v. Nebraska[220] ruling mentions that the HEROES act only allows the department to "modify", one could very easily remind the Federalist Wing of this court of what Catherine Drinker Bowen[221] reminds us. The Constitution itself was a bold defiance of Congressional instructions and is only accepted, now, today, because of its subsequent *fait accompli*, i.e. the states and people subsequently debated, and then signed and ratified it. But if initial instructions were adhered to, strictly construed, the convention was only to meet "… for the sole and express purpose of revising the Articles of Confederation."; had the framers followed such instructions, they would not have been "the framers", but, instead, "the modifiers".

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[218] Menand, 2001
[219] Mr. Roberts recent, 2025, speech Georgetown law students.
[220] Biden v. Nebraska, supra note 8, at 1-all.
[221] Catherine Drinker Bowen, 1967.

A quick look to the O.E.D.[222] shows us the first usage of "modify: to be around or near 1390 CE, with Gowen, in the *Confessio Amantis*,[223] with a secondary meaning, more to my liking, in 1430-1440 CE, by LYDG Boohas (?)[224]. First we have, "To limit, restrain, keep within bounds and measure", and secondly, "To appease, assuage.".

Or, at length;

> "So as the Philosophre tolde,
> A king after the reule is holde
> To modifie and to adresce
> Hise yiftes upon such largesce
> That he measure noght excede:
> For if a king falle into nede,
> It causeth ofte sondri thinges
> Whiche are ungoodly to the kinges.
> What man wol noght himself mesure,
> Men sen fulofte that mesure
> Him hath forsake: and so doth he
> That useth Prodegalite,
> Which is the moder of poverte,
> Wherof the londes ben deserte" (vii, 2151-2164, in Gower's 1390 CE, Confessio Amantis)

And, the OED entry for "LYDG, Boohas (1430-1440 CE; and 1494 CE)"

> "Tyrauntys hertis thys virtue doth appese, Modefyeth their cruell fell wodenesse."
>
> Or, rather : "[A] Tyrants hurt, this virtue does appease, modifying their cruel evil woodeness (madness)."

And, one more, I offer, for good measure[225]:

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[222] Murray and Minor's dictionary 1857, and 1884-1928, A.K.A. "The "O.E.D.".
[223] In O.E.D., Gowen, *Confessio Amantis,* 1390 CE.
[224] In O.E.D., LYDG, Boohas (1430-1440 CE; and 1494 CE
[225] IN O.E.D., 1433 CE, St Edmund.

" 1433 CE, St Edmund 'Thus kan the lord … The rage of beestis apese and modifie.' "

Or, rather : "Thus can the lord … The rage of beasties appease and modify."

For my part—paperwork submitted--I retire to the Pacific world—both pacific in character, and in geographical location-- and seek historical resonance in travel and celebration of the 200 year anniversaries of several of my scientific heroes: Darwin, T.H. Huxley, S. Butler, R. Semon, D. Schultz (Laubman and Pank), and maybe even Gerard Krefft and A.R. Wallace. I regret that I have, been forced, in this document and others, to play both Professor and Madman[226] but I trust that, irrespective of what this court chooses to do with this Petition for a Writ (see the two articles referencing Pro Se cases, and their recent historical reception and non-reception by the U.S. Supreme Court; Goldschmidt[227]; Persaud[228]). I will live and work abroad, amongst civilized, literate, law-abiding persons. Perhaps, I will live as the last of a dying breed, the last of the patriotic Americans, and certainly, one of the last to live truly free of the ersatz-aristocrats and both the early and late robber barons, allied as they now seem to be with the old, oligarchic, anarchic, ancient European aristocracy. Perhaps it has changed since Lundberg's first wrote in his 1937 expose[229], where "names were named", but the alternative hypotheses for my experiences--a celebrit-ocracy, minus a meritocracy[230]--is no more suitable than the ersatz-aristocracy.

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[226] Winchester, Simon. 1998.
[227] Goldschmidt, 2020.
[228] Persaud, 2024.
[229] Lunberg, 1937, Id.
[230] Brooks, David. 2025 ??

And so, I leave, nonetheless. In short, good luck to you, It is too well worn a phrase to quote here, but too apt to resist; perhaps, Ben Franklin is most apt? "[It's] A Republic, if you can keep it.".

> "Creeds and schools in abeyance; Retiring back a while sufficed at what they are, but never forgotten; I harbor for good or bad, I permit to speak at every hazard; Nature without check with original energy."~Walt Whitman[231]

Conclusion

The petition for the Writ of Certiorari should be granted.

Signed : _____ Date : _____

[231] Walt Whitman[231] Song of Myself, 1855-1891 CE

Appendix I.

It might be alleged, or worse, levied in an unspoken, insinuated, implied charge, that I am merely a disappointed author, lacking the grit and determination to see his intellectual product through to its completion. This is a mistaken, *ad hoc* theory. I have done my work, and done it well. I will not deny that celebrity and vanity are occupational hazards, in academia, but this was known when I chose the profession, at age 14, and some of that hazard is accepted, as unavoidable, and some is rejected and mitigated and avoided, through a meticulous ethic that I have attempted to apply, in my daily life. If I can accept these unavoidable hazards, as a teenager, then the rest of us, some 20 or 30 years later, can see fit to accept, also, that it is, first, the duty of an author or a writer to have a unique opinion, and second, to share it.

So, with regard to what I have already accomplished, professionally, let us imagine the following is a true, even if only approximate, account of events, as they presently stand:

(1) 1745 CE Maupertuis Discoverer of “natural selection”. First genetic” speculations, and “phenotypic" genealogical tree.

(2) 1859 Darwin, popularizer and coiner of the term “natural selection”. Application of Lyell’s uniformitarian principle to biology, instead of geology.

(3) 1863 Butler, first application of Lyell's principles of uniformitarianism, and Maupertuis/Darwin's "natural selection" to the mechanical world.

(4) 1900 Correns, De Vries, Tschermak, and Bateson; Neo-Darwinian Synthesis, first application of Lyell's uniformitarianism to the biochemical world, completing Maupertuis', Darwin's, Wallace's, and Mendel's picture of the universe.

(5) (1906/1976/1995) Semon / Dawkins / Dennett, first application of Lyell's principle of uniformitarianism to the social, psychological, neurological, mental, linguistic and cultural world.

(6) 2003 Meyer, first and best application of a mathematical theory to the uniformitarian view of cultural evolution, i.e.. via the Permutation and Combination equations of the Jain philosopher mathematicians, and the works of Aristotle, Semon, Dawkins, Dennett, and S.J. Gould, etc., above.

Note: Bentley Glass' work "Forerunner of Darwin" would support my position regarding Maupertuis, but Ernst Mayr, S.J.Gould and Bowler would argue otherwise. Gould and Mayr have passed early in this century, but the benefit of being literate individuals, is that we can always debate the record; always, that is, in academia, until now!